



DEPARTMENT OF PUBLIC SAFETY

Colorado Bureau of Investigation

RULES AND REGULATIONS CONCERNING CRIMINAL HISTORY RECORDS OF VOLUNTEERS AND EMPLOYEES OF CHARITABLE ORGANIZATIONS

8 CCR 1507-21

[Editor's Notes follow the text of the rules at the end of this CCR Document.]

AUTHORITY TO ADOPT RULES AND REGULATIONS

The Colorado Department of Public Safety is authorized by the provisions of Section 24-72-305.3 (2) (c) (I), C.R.S. to adopt rules and regulations identifying those entities that may serve as qualified entities and rules concerning criminal history records of volunteers and employees of charitable organizations.

DEFINITIONS

The definitions provided in Section 24-72-305.3(2)(a), C.R.S. shall apply to these rules and regulations.

The following additional definition shall also apply:

“National Criminal History Background Check” means the criminal history record system maintained by the Federal Bureau of Investigation based on fingerprint identification.

“Qualified Entity” means a business or organization, whether public, private, for profit, not for profit, or voluntary, that provides child care or child care placement services, including a business or organization that licenses or certifies others to provide child care services and is not an entity otherwise required by Colorado Law to obtain criminal history records.

CBI-VCA-1: APPLICABILITY

These rules and regulations shall apply to the Colorado Bureau of Investigation and to any public or private, for-profit, not-for-profit or volunteer organization that provides care or care placement services including a business or organization that licenses or certifies others to provide care or care placement services to any child, elderly person or person with disabilities for whom the organization provides care.

CBI-VCA-2: A. QUALIFIED ENTITIES

Qualified Entities who provide childcare services may request criminal history record checks.

CBI-VCA-2: B. PROCEDURE FOR OBTAINING “QUALIFIED ENTITY” STATUS

A business or organization seeking to conduct background checks as a “Qualified Entity” as defined in Section 24-72-305.3 (2) (a) (VII), C.R.S. may contact the Colorado Bureau of Investigation, Biometric Identification and Records Unit, by email at cdps_sddssupport@state.co.us or by phone at (303) 239-4208.

A copy of the requesting entity's registration on file with the Secretary of State or Department of Regulatory Agencies must be returned with the completed forms.

The Identification Section will then determine whether or not the entity will be acknowledged as a "Qualified Entity." The determination will be based on the definitions found in Section 24-72-305.3 (2) (a), C.R.S. The Identification Section will notify the entity of their status. The entity may appeal the decision in writing to the Director of the Colorado Bureau of Investigation within thirty (30) days of the date of the notification at the following address:

Colorado Bureau of Investigation
690 Kipling Street
Lakewood, Colorado 80215

CBI-VCA-3: NATIONAL CRIMINAL HISTORY RECORDS CHECK

Organizations and businesses caring for children, the elderly or individuals with disabilities may use national fingerprint based criminal history records to screen volunteers and prospective employees.

When a business has received "Qualified Entity" status from the CBI, the entity may then obtain a criminal history records check on any person that provides care or care placement with the entity as a current or prospective employee or volunteer.

Criminal history records checks may be obtained by submitting an email request via the [CBI Biometric Identification and Records Unit website](#).

CBI-VCA-4: FORMS, PUBLICATIONS AND RULES INCORPORATED BY REFERENCE

All forms, publications and rules adopted and/or incorporated by reference in these regulations are on file and available for public inspection by contacting the Colorado Bureau of Investigation, 690 Kipling Street, Lakewood, Colorado 80215. This rule does not include later amendments to or editions of any materials incorporated by reference. All publications and rules adopted and incorporated by reference in these regulations may be examined at the any state publications depository library.

Editor's Notes

History

Entire rule eff. 05/30/2025.